

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents

SEA’S OPPOSITION TO OOCL’S EMERGENCY MOTION TO STRIKE

Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”), by its undersigned counsel, respectfully opposes Respondents Orient Overseas Container Line, Limited and OOCL (Europe) LTD, (collectively, “Respondents” or “OOCL”) Motion to Strike SEA’s Motion to Compel (the “MTS”). Specifically, SEA opposes OOCL’s request that SEA’s Motion to Compel (Doc. No. 105, the “MTC”) be stricken *in toto* and OOCL’s request for an extension of time to respond to the MTC, but does not oppose OOCL’s request for additional pages within which to respond to the MTC.

A. The Motion to Compel did not exceed the allowable pages.

OOCL’s MTS lacks a basis under the very Rule OOCL cites. Rule 71, 46 C.F.R. § 502.71(d), reads as follows: “(d) Page limits. Neither the motion nor the response may exceed 10 pages, excluding exhibits or appendices, without leave of the presiding officer.” (emphasis added). The MTC consisted of 10 pages of Motion, a signature page, and three appendices. OOCL’s

representation that “nothing in the FMC Rules excludes appendices from the page count,” is simply false.

OOCL also contends that the appendices include multiple pages of “supplemental argument.” That is also false. Appendix I provided examples of documents known to be in OOCL’s possession that OOCL did not produce. It is not argument. Appendix II (OOCL Incomplete Responses to Interrogatories) and Appendix III (OOCL Incomplete Responses to Requests for Production) to the MTC were provided in compliance with the Initial Order in this Matter of March 29, 2024. That order requires that:

The motion must set forth verbatim the interrogatory or request, the response that the moving party argues is insufficient, a summary of the moving party’s attempts to secure a sufficient response, and the moving party’s argument as to why the response is insufficient.

Doc. No. 5 at 3, ¶ 12.

To comply with the Initial Order, SEA was therefore required to set forth the discovery request at issue, OOCL’s insufficient response, a summary of SEA’s attempts to secure a sufficient response, and a concise explanation as to why the response is insufficient. The arguments why OOCL’s responses must be compelled are set forth in the body of the MTC.

OOCL’s insufficient discovery responses were indisputably numerous – Interrogatories 3, 4, 5, 6, 7, 8, 14, 15, 16, and 18, and Requests for Production 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, and 14. Moreover, as evidenced by the MTC and its appendices, in response to SEA’s efforts to resolve the discovery disputes without the necessity of a motion to compel, OOCL strung out its discovery responses through January 9, 2026, thereby creating a lengthy record to be included in the appendices.

B. OOCL proposed that SEA use appendices rather than a motion to extend page limits

In the course of identifying OOCL's multiple discovery shortcomings and attempting to resolve them, SEA anticipated that the compilation of verbatim interrogatories and requests and insufficient responses of OOCL, and the statements of why those responses were insufficient, would be lengthy, even without the associated argument and identification of broader issues.

SEA therefore raised the issue of page limits well in advance, during discussions seeking to resolve the discovery impasses. On December 12, 2025, SEA requested OOCL's position on a Motion to Extend Page limits in connection with its anticipated Motion to Compel Discovery, and proposing that SEA would consent to OOCL having an equal number of pages to respond. *See*, Ex. C. At a subsequent meet and confer on the outstanding issues on December 15, 2025, SEA again requested OOCL's position on a motion to extend the page limits. Counsel for OOCL proposed that in lieu of such a motion SEA instead use appendices to comply with requirements to provide verbatim recitations of discovery questions and responses and explanations of why each challenged response was insufficient, as required by the Initial Order. OOCL's counsel noted they had done so previously in other matters. At the conclusion of the meet and confer, SEA asked OOCL to confirm its position regarding SEA's proposed motion to extend page limits and OOCL confirmed that it would reserve its position. *See* Ex. D. OOCL's statement that "SEA made no effort to seek 45 additional pages by motion, either beforehand or with its jumbo filing" is therefore misleading at best.

Accordingly, OOCL's reference to an Order in *Visual Comfort & Co. v. Cosco Shipping Lines Co., Ltd.*, (Dkt. 24-01) is inapposite. While the Presiding Officer noted in the relevant section of the Order that the motion to compel at issue could have been structured differently to stay within or closer to page limits, the "most concerning part" was that the parties did not confer

prior to filing a motion to enlarge. In this case, the parties did confer, and SEA did restructure its motion to stay within the 10 page limit permitted by Rule 71.

C. OOCL has had ample time to prepare its responses to the MTC

The MTC and the issues raised in it were no surprise to OOCL. SEA has attempted to resolve the issues collaboratively with OOCL for months. On September 23, 2025, SEA sent a detailed deficiency letter to OOCL. *See* Ex. A. Subsequently, SEA met and conferred with OOCL's counsel repeatedly in an effort to resolve those issues, unsuccessfully for the most part. *See* Exs. B and D. Those are the same issues set out in the MTC. Thus OOCL has long been on notice of the claimed deficiencies and has for some time formed and held its position with regard to those issues.

OOCL has no reasonable cause for delay, and such delay will only exacerbate the prejudice to SEA caused by OOCL's failure to comply with its discovery obligations. That a party's failure to comply with its discovery obligations is prejudicial, both to the other party and to the forum as a whole, should be beyond question. Indeed, in *MCS Industries, Inc. v. Mediterranean Shipping Company S.A.*, Dkt. 21-05, 2024 WL 95383 (FMC, Jan. 3, 2024), the Commission affirmed an order of default where a carrier attempted to limit discovery to less than what was required to evaluate the complainant-shipper's claims and failed to produce requested documents. The Commission noted that the failure of discovery prejudiced the opposing party and the forum. *Id.* at *10-11.

As detailed more fully in the MTC, OOCL has and continues to withhold a large number of documents, and prejudices both SEA and this forum by doing so. OOCL, a foreign-controlled ocean common carrier, and an experienced Respondent in the FMC's forum, is aware that earlier Initial Decisions have sought a full record for charges claimed to be unjust or unreasonable. As

the carrier of cargo shipped on store-door delivery terms, OOCL had custody, control, and possession of SEA's containers on which it charged demurrage, while those containers were in its custody. OOCL's failure to produce the relevant documents detailing OOCL's failures to effect timely delivery, which led to demurrage charges to the consignee for those failures, impedes SEA from presenting a complete record. Further, it obstructs this forum from fairly assessing the full record of the delays on which OOCL based its demurrage charges against SEA. Respectfully, OOCL's dilatory tactics should be rejected. SEA therefore opposes OOCL's request for an extension of time to respond to the MTC.

D. SEA does not oppose OOCL's request for additional pages within which to respond

SEA does not oppose OOCL's request to exceed the 10-page limit for its opposition to the Motion to Compel. SEA had already agreed that an extension of the page limits for OOCL's response would be reasonable, given the number of its discovery shortcomings at issue. *See Ex. A.*

CONCLUSION

For the foregoing reasons, OOCL's Emergency Motion to Strike should be denied as to OOCL's request to strike the MTC and for an extension of time to respond. SEA does not oppose reasonable additional pages for OOCL's response to SEA's Motion to Compel.

Dated: January 28, 2026

Respectfully Submitted,

MILLS BLACK LLP

By: /s/ Peter F. Black

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
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2. Hon. Richard Ambrow - *Administrative Law Judge*
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Dated: January 28, 2026

By: /s/ Peter F. Black

Peter F. Black
MILLS BLACK LLP

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Exhibit A

Correspondence of SEA to OOCL

Deficiency Letter dated September 23, 2025



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September 23, 2025

VIA EMAIL (RFenneman@JeffreyFenneman.com)

Rebecca A. Fenneman, Esq.
Jeffrey/Fenneman Law + Strategy, PLLC
700 12th Street, NW, Suite 700
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Re: *Dkt. No. 24-17: Deficiencies in OOCL's Responses to SEA Discovery Requests*

Dear Ms. Fenneman:

We have identified deficiencies in the responses from Orient Overseas Container Line, Ltd. and OOCL (Europe), Ltd. ("OOCL") to Samsung Electronics America, Inc.'s ("SEA" or "Complainant") First Set of Interrogatories and Requests for Production of Documents ("Initial Discovery Requests") dated July 24, 2025. We document the relevant discovery issues below with the hope that we can facilitate a resolution together.

While we are still in the process of conducting a thorough review of the documents produced thus far, we have identified some initial deficiencies that we bring to your immediate attention. We understand that OOCL is continuing the process of compiling additional production in response to our interrogatories and requests for production, however if this is not the case, kindly advise. This letter refers to the Bates stamped production beginning with OOCL_0000001 and ending with OOCL_0014996.

I. GENERAL DEFICIENCIES

1. OOCL produced documents only as text images rather than in the Native format as required in Instruction No. 15. Please produce the entire production in Native format and produce all future materials in Native format. This is a reasonable request pursuant to 46 C.F.R. 502.146(b)(1)(iii) and we understand that OOCL is in the process of complying with this request.
2. OOCL's production contains duplicate documents with email chains. We request that OOCL deduplicate its production moving forward and we will do the same in our productions to the best of our ability.

3. Our initial review identified many email chains produced entirely in Korean. We previously requested that OOCL translate the documents it produced in Korean to English to make any information contained within those emails reasonably usable. Please see 46 CFR 502.146(a)(1)(i). Further to our conversations, the parties have discussed the use of artificial intelligence (AI) on their respective eDiscovery platforms for necessary translations in the first instance, however the parties will need to finalize the ESI Protocol to ensure the production of documents in Native format, which should rectify this deficiency.
4. As mentioned in my email of September 10th, many email chains indicate attachments, however those attachments were not produced. Please reproduce this batch (OOCL_0000001 to OOCL_0014996) in Native format and include the missing attachments, along with text data that preserves all foreign-language characters.

II. OOCL'S GENERAL OBJECTIONS

OOCL Objection 2. OOCL objects to the Interrogatories, Document Requests, Definitions and Instructions to the extent that they construe "OOCL" or "Respondent" to include any of OOCL's agents and persons acting or purporting to act on OOCL's behalf. These Definitions impermissibly seek information and Documents beyond the custody, control or possession of OOCL.

SEA's Response to OOCL's Objection: OOCL's objection is without merit. The definition offered by SEA is as follows: "'OOCL" or "Respondent" means Orient Overseas Container Line, Limited and OOCL (Europe) Ltd., individually and/or collectively, including their corporate parents, subsidiaries, affiliates, predecessors, successors and assigns, and all their officers, directors, employees, agents, representatives, subcontractors, and persons acting or purporting to act on their behalf in connection with one or more SEA Shipments." This definition is inclusive of all persons connected with the shipments in question and is valid.

OOCL Objection 11. OOCL objects to the "Relevant Time Period" set forth in the Instructions of "January 1, 2020 to present" as burdensome, overly broad and not calculated to lead to the discovery of admissible evidence and objects to each Interrogatory that purports to require answers or the production of documents, data, or other information during the "Relevant Time Period." Neither the provision of answers nor the production of any documents, data, or other information shall constitute a waiver of this objection or an admission, agreement, or acceptance by OOCL of the Relevant Time Period defined in the Instructions. OOCL will produce materials dating from January 1, 2020, until December 31, 2023, as a sufficient time period to capture all materials relevant to the proceeding.

Deficiency: SEA's Initial Discovery Requests define the Relevant period as "January 1, 2021 through December 31, 2022, unless otherwise specifically indicated." OOCL's objection references a longer period and cites OOCL's own Initial Discovery Requests,

which define the relevant period as “January 1, 2020 to present.” In this objection, OOCL proposes yet another period of “January 1, 2020, until December 31, 2023.” SEA does not request any information beyond the scope of its own definition.

OOCL Objection 12. OOCL reserves the right to seek a fee and cost shifting order or similar relief to the extent that the Requests require the review and production of voluminous materials.

Deficiency: SEA objects to OOCL’s reservation. At the outset of the parties’ initial meet and confer on the discovery issues, both sides understood that the review and production of voluminous materials would be required in this matter. If OOCL maintains that it has a right to fee or cost shifting, please identify the legal basis and provide supporting authority.

III. INTERROGATORIES

Interrogatory No. 1. Identify and describe all SEA Shipments during the Relevant Time Period, including, for each such shipment, the following information on a by-Container basis:

- a. Container number;
- b. bill of lading/sea waybill number;
- c. Container type/size;
- d. freight charge(s);
- e. place or port of loading;
- g. U.S. discharge port;
- h. vessel discharge date and time;
- i. U.S. discharge Marine Terminal;
- j. first free day/time on Marine Terminal;
- k. last free day on Marine Terminal;
- l. all Demurrage charges, including as applicable, the charge type, charge rate and rules, the amount assessed or charged, the amount waived or refunded, the Person charging and/or invoicing such charges, the invoice number, date, and reference information, the Person paying such charges, and the amount outstanding, if any;

- m. whether the SEA Shipment was a Store Door move or CY move;
- n. all Detention charges, including, as applicable, the charge type, charge rate and rules, the amount assessed or charged, the amount waived or refunded, the Person charging and/or invoicing such charges, the invoice number, date, and reference information, the Person paying such charges, and the amount outstanding, if any; and
- o. any other data items or data fields generally associated with OOCL shipment records for Containers and kept or maintained in the normal course of business.

Response: OOCL objects to this interrogatory on the grounds that it is overly broad, burdensome and seeks information which is not relevant nor calculated to lead to the discovery of admissible evidence insofar as it requests information with respect to every shipment for which SEA was the consignee or payor and OOCL was carrier. OOCL further objects to this Interrogatory because it requests information that is in the possession, custody or control of SEA. Subject to and without waiving the foregoing objections, OOCL states that it will answer this Interrogatory by producing non-privileged documents, if any, which contain relevant information for Store Door shipments for which demurrage and/or detention was charged that are in OOCL's possession, custody or control and which OOCL is presently able to identify based upon the limited information provided to date by SEA with respect to its claims.

Deficiency: OOCL's objection to this Interrogatory as overly broad for requesting information as to every shipment which SEA was the consignor or payor and OOCL was the carrier is frivolous, particularly as this interrogatory refers only to the Relevant Time Period defined as the period of "January 1, 2021, until December 31, 2022." Further, OOCL states it will produce documents which contain relevant information regarding Store Door shipments in response to this question. SEA seeks the requested information from Interrogatory No. 1 in Excel spreadsheet form.

Interrogatory No. 3. For each Marine Terminal identified in response to Interrogatory No. 1 and Inland Terminal identified in response to Interrogatory No. 2, describe OOCL's Policies in connection with the assessment and collection of Demurrage; such description to include, but not be limited to: (a) a description of how Demurrage is calculated, assessed, and collected; (b) whether Demurrage is guaranteed by OOCL to the Marine or Inland Terminal, and/or if Containers are released from a Marine or Inland Terminal prior to the payment of Demurrage, the portion or allocation of Demurrage that is retained or paid or otherwise represents remuneration of Demurrage to the Terminal as contrasted to Demurrage paid to or retained by OOCL; (c) whether the Policies are different for Containers moving under Store Door terms versus CY terms, and if so, in what way; (d) whether the Policies are different for Marine Terminals as contrasted with Inland Terminals, and if so, in what way; (e) whether the Policies

are different with respect to different customers, shippers, or consignees, and if so, in what way; and (f) specify any differences or changes in such Policies during the Relevant Time Period.

Response: OOCL objects to this Interrogatory because it requests information that is not within the possession, custody or control of OOCL, insofar as the practices, policies and procedures of the Marine Terminals and Inland Terminals that are the subject of this Interrogatory are established by the operators of the terminals and not by OOCL. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will answer this Interrogatory by producing non-privileged documents in its possession, custody or control which contain relevant information that is responsive to this Interrogatory to the extent that they exist.

Deficiency: OOCL's objection misconstrues the request in the interrogatory and is thus frivolous. SEA does not seek terminal policies. It seeks OOCL's own policies and practices for calculating, assessing, and collecting demurrage, and how those policies operate in relation to the Marine and Inland Terminals identified in Interrogatory No. 2. That information is within OOCL's possession, custody, or control. A vague offer to produce unspecified documents is not a sufficient response. We note that OOCL has yet to produce information regarding its Demurrage policies as requested in Interrogatory No. 3.

Interrogatory No. 5: For each port or Marine Terminal identified in response to Interrogatory No. 1 and Inland Terminal identified in response to Interrogatory No. 2, for Containers out-gated on Motor Carriers, identify: (a) the total number of Container on the "street" (referring to Containers out-gated on Motor Carriers but not yet returned to a Carrier designated location); and (b) the total number of available empty return appointments or opportunities, in each case, for the shortest interval such information is tracked in the normal course of business or reasonably derivable from records kept in the normal course of business, with applicable dates sufficient to compare numbers and ratios of Containers on the street and availability for return over time in each port area for OOCL Containers generally, and for SEA Shipments.

Response: OOCL objects to this interrogatory on the grounds that it is overly broad, unduly burdensome and seeks information which is not relevant nor calculated to lead to the discovery of admissible evidence insofar as it requests information regarding Containers without limitation and requests details about "return appointments or opportunities" without limitation. OOCL further objects to this interrogatory because it seeks information that is not within the possession, custody or control of OOCL, insofar as the practices, policies and procedures for obtaining "return appointments and opportunities" to return Containers at Marine Terminals and Inland Terminals are determined by the operators of the terminals and not by OOCL.

Deficiency: OOCL's objections are improper. The interrogatory is narrowly tailored to the terminals identified in Interrogatories 1 and 2, to containers actually out-gated on Motor Carriers, and to the Relevant Time Period of January 1, 2021 through December 31, 2022. It also limits the burden by asking for the shortest interval OOCL tracks in the ordinary course or can reasonably derive from its records. OOCL's knowledge of the total number of containers which were out-gated and not yet returned in connection with the total number of available empty return appointments or opportunities is both relevant and calculated to lead to the discovery of admissible evidence in this matter. SEA requests OOCL rescind its objection and provide the requested information.

Interrogatory No. 6: For Q1, Q2, Q3, Q4 (e.g., each three-month period during a company's financial year that acts as a basis for periodic financial reports), during the Relevant Time Period, for Containers at Marine Terminals identified in response to Interrogatory No. 1 and Inland Terminals identified in response to Interrogatory No. 2, identify the total amount of Demurrage and Detention assessed, waived, and collected by or on behalf of OOCL in connection with such Containers, and separately identify: (a) such total Demurrage at Marine Terminals; (b) such total Demurrage at Inland Terminals; (c) the separate totals of Detention for Chassis and Detention for Containers; and (d) each of the foregoing separately for: (i) SEA Containers; (ii) other Store Door shipments (other than SEA Containers); and (iii) CY shipments.

Response: OOCL objects to this interrogatory on the grounds that it is overly broad, burdensome and seeks information which is not relevant nor calculated to lead to the discovery of admissible evidence insofar as it requests information regarding shipments for which SEA is not the shipper, consignee or notify party.

Deficiency: Interrogatory No. 6 expressly seeks information regarding charges during the Relevant Period at the relevant terminals to capture an accurate assessment of detention and demurrage affecting inland transportation under Store Door and CY terms, and the proportion of those charges allocated to SEA. The total amount of demurrage and detention assessed, waived, and collected by or on behalf of OOCL, separated by type of terminal is exactly the type of information that is relevant and calculated to lead to the discovery of admissible evidence. This information is within OOCL's possession, custody, or control and is central to the issues in dispute.

Interrogatory No. 7: Describe OOCL's Policies for arranging and providing Inland Transportation of Containers under Store Door terms from 2018 to the Present, including, but not limited to: (a) arranging Inland Transportation; (b) contracting for Motor Carriers (c) contracting for inland rail carriage; (d) issuing work orders for Motor Carrier pickup; (e) determining

responsibility for, and allocation of, charges for Demurrage and Detention in Inland Transportation between or among OOCL, the Motor Carrier, the railroad, the shipper, and/or the consignee; and (f) any changes in such practices, policies or procedures during the such time period, including any changes or differences with respect to SEA Shipments or shipments moving under Store Door terms as contrasted with CY terms.

Response: OOCL objects to the time frame of “2018 to the Present” on the grounds that it is overly broad, unduly burdensome and not calculated to lead to the discovery of admissible evidence. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will answer this Interrogatory by producing non-privileged documents, for the time period of January, 2020 until December 31, 2023, that are in its possession, custody or control, which contain relevant information, that are responsive to this Interrogatory.

Deficiency: Interrogatory No. 7 expressly seeks policies from January 1, 2018 to the present to capture pre-pandemic baselines, pandemic-era adjustments, and post-pandemic revisions affecting inland transportation under Store Door and CY terms, including allocation of demurrage and detention. This information is within OOCL’s possession, custody, or control and is central to the issues in dispute.

Interrogatory No. 8: For each Marine Terminal and Inland Terminal identified in response to Interrogatory Nos. 1 and 2, list each Motor Carrier and railroad with which OOCL has entered into an agreement to provide Inland Transportation for Containers, the dates or duration of such agreement(s), and the applicable rates for each item of service set forth in such agreement(s).

Response: OOCL objects to this interrogatory on the grounds that it is overly broad, burdensome and seeks information which is not relevant nor calculated to lead to the discovery of admissible evidence, because it requests information with respect to every shipment for which SEA was the consignee or notify party and OOCL was carrier. OOCL furthermore objects to this Interrogatory because it requests information regarding Motor Carriers which SEA directed OOCL to use and such documents are accordingly in the possession, custody or control of SEA. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will answer this Interrogatory by producing documents, if any, in its possession, custody or control, which contain relevant information, that are responsive to this Interrogatory.

Deficiency: SEA requests that OOCL withdraw its objection. Its request is limited to the Relevant Period and tailored to relevant and admissible evidence for agreements between OOCL and the motor carrier and railroads which carried SEA containers.

Interrogatory No. 9: For Store Door moves utilizing railroads for all, or a portion of, Inland Transportation, describe OOCL's Policies pertaining to: (a) the availability and provision of chassis for OOCL Containers arriving at such Inland Terminals, including how chassis are provided, who is responsible for providing chassis, and when a Container is deemed available for pick up; and (b) the calculation of first free day, running of Free Time, last free day, and calculation, assessment and collection of charges for Demurrage at Inland Terminals.

Response: OOCL objects to this Interrogatory because it seeks information that is not within the possession, custody or control of OOCL, insofar as the practices, policies and procedures of railroads and Inland Terminals are determined by the railroads and operators of the Inland Terminals and not by OOCL. OOCL also objects to this Interrogatory as overly broad, burdensome and seeks information which is not relevant nor calculated to lead to the discovery of admissible evidence, because it requests information with respect to shipment for which SEA was neither shipper, consignee, nor notify party. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will answer this Interrogatory by producing non-privileged documents in its possession, custody or control, which contain relevant information, that are responsive to this Interrogatory.

Deficiency: SEA clarifies that its request is limited to OOCL's policies for railroads which transported SEA containers. SEA requests that OOCL withdraw its objection and provide the requested information.

Interrogatory No. 14: Provide the total amount of Demurrage charges for each fiscal quarter of each year from 2020 to 2025 that OOCL charged SEA in connection with SEA Shipments moving under Store Door terms.

Response to No. 14: OOCL objects to this interrogatory on the grounds that it is overly broad, burdensome and seeks information which is not relevant nor calculated to lead to the discovery of admissible evidence insofar as it requests information for the period from 2020 until 2025. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will answer this Interrogatory by producing non-privileged documents in its possession, custody or control, which contain relevant information, that are responsive to this Interrogatory.

Deficiency: OOCL's objection to this Interrogatory as overly broad, burdensome, and seeking information not relevant or calculated to lead to the discovery of admissible evidence is frivolous and SEA requests that OOCL withdraw its objection. Interrogatory No. 14 seeks quarterly totals of demurrage OOCL charged SEA for Store Door shipments from 2020 through 2025. That period is proportional and relevant to establish baseline, pandemic, and post-pandemic conditions and is necessary to assess whether OOCL's demurrage charges during the Relevant Time Period were consistent with charges before

and after such time period or reflect unusual circumstances, which is relevant to assess the reasonableness, or otherwise, of OOCL's charges and practices. OOCL already maintains this data in the ordinary course. A vague promise to produce unspecified documents is not sufficient.

Interrogatory No. 15: Provide the total amount of Detention charges for each fiscal quarter of each year from 2020 to 2025 that OOCL charged SEA in connection with SEA Shipments moving under Store Door terms.

Response to No. 15: OOCL objects to this interrogatory on the grounds that it is overly broad, burdensome and seeks information which is not relevant nor calculated to lead to the discovery of admissible evidence insofar as it requests information for the period from 2020 until 2025. Moreover, OOCL objects to this request on the grounds that SEA requests documents that are already in its possession. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will answer this Interrogatory by producing non-privileged documents in its possession, custody or control, which contain relevant information, that are responsive to this Interrogatory.

Deficiency: OOCL's objection to this Interrogatory as overly broad, burdensome, and seeking information not relevant or calculated to lead to the discovery of admissible evidence is frivolous and SEA requests that OOCL withdraw its objection. Interrogatory No. 15 seeks quarterly totals of detention OOCL charged SEA for Store Door shipments from 2020 through 2025. That period is proportional and relevant to establish baseline, pandemic-era, and post-pandemic practices and is necessary to assess whether OOCL's detention charges during the Relevant Time Period were consistent with charges before and after such time period or reflect unusual circumstances, which is relevant to assess the reasonableness, or otherwise, of OOCL's charges and practices. OOCL already maintains this data in the ordinary course. A vague promise to produce unspecified documents is not sufficient.

Interrogatory No. 16: For each SEA Shipment identified in response to Interrogatory Nos. 1 and 2, for which a Demurrage charge was collected by OOCL, identify: (a) the OOCL Person responsible for determining that SEA was responsible to pay the charge and the reason the OOCL Person determined that SEA was responsible to pay the charge, if any; (b) the basis on which OOCL determined at the time, if any, that assessing such charge on SEA was just and reasonable, and consistent with the FMC's rules with respect to Demurrage (including the incentive principle); and (c) whether or not circumstances outside of SEA's control, including but not limited to terminal congestion, unavailability of equipment, delays by motor carriers, or

OOCL's performance, actions, or inactions caused or contributed to any delay in the pick up and delivery of the SEA Shipment to the contracted destination.

Response: OOCL objects to this interrogatory on the grounds that it is overly broad, burdensome and not susceptible to answer through an Interrogatory. OOCL asserts that persons who may have knowledge of the subjects set forth in this Interrogatory were identified in OOCL's Initial Disclosures. Further, OOCL will answer this Interrogatory by producing non-privileged documents which contain relevant information for Store Door shipments that is responsive to this Interrogatory.

Deficiency: OOCL's objections are improper. This interrogatory seeks information uniquely within OOCL's knowledge for each SEA shipment where demurrage was collected, including the decision maker, the contemporaneous rationale that the charge was just and reasonable and consistent with FMC rules, and whether circumstances outside SEA's control contributed to delay. Identifying potential witnesses in Initial Disclosures is not a substantive answer, and a promise to produce unspecified documents is not a substitute for a verified response. Further, we have been unable to identify anything in OOCL's Initial Disclosures that answers this Interrogatory. We request that OOCL's additional production respond to this interrogatory.

Interrogatory No. 18: Provide the contact information for the OOCL individual(s) and/or department(s) responsible for handling and/or responding to Demurrage and Detention inquiries or disputes, and those with managerial responsibility for Store Door moves, during the Relevant Time Period, and, if different, specifically with respect to SEA Shipments.

Response: Subject to the General Objections set forth above, OOCL hereby responds that persons who may have knowledge of the subjects set forth in this Interrogatory were identified in OOCL's Initial Disclosures.

Deficiency: The response is nonresponsive. Pointing to Initial Disclosures does not identify the actual contacts for demurrage and detention inquiries or disputes, or the managers responsible for Store Door moves. This interrogatory seeks the specific OOCL individuals and departments that handled these functions during the Relevant Time Period, and any different contacts for SEA shipments. OOCL points to its Initial Disclosures which does not identify those individuals or departments. Further, we have been unable to identify anything in OOCL's Initial Disclosures that answers this Interrogatory. We request that OOCL's additional production respond to this interrogatory. If OOCL relies on documents, identify each by title and Bates range.

IV. REQUESTS FOR PRODUCTION

Request No. 9: Produce all Documents relating to OOCL's cost, pricing, revenue, or profit from freight and from Demurrage and Detention for U.S. destinations in connection with Store Door Container moves as contrasted with CY moves (including studies, analyses, tracking data, reports, summaries, presentations, memorandums, etc.).

Response: OOCL objects to this request on the grounds that it is overly broad, burdensome and seeks information which is not relevant nor calculated to lead to the discovery of admissible evidence.

Deficiency: SEA asserts that such information is relevant and calculated to lead to the discovery of admissible evidence with respect to the unjust and unreasonable nature of OOCL's demurrage and detention charges. The request is confined to the Relevant Period and to U.S. destinations, and it seeks materials OOCL maintains in the ordinary course. SEA reiterates its request for the above-requested information.

V. CY MOVES

Deficiency: Throughout its responses to both Interrogatories and Requests for Production, OOCL objects to providing information relating to CY shipments (See OOCL Responses to Interrogatories Nos. 1, 6, 10-13, 17, 19 and OOCL Responses to Document Requests No. 9). SEA requests the basis for this objection, or OOCL's agreement to a stipulation that OOCL did not transport SEA containers under CY terms during the Relevant Period.

In light of the above, kindly provide complete responses to resolve the noted deficiencies. Absent that, we request your availability for a meet-and-confer to discuss possible resolutions of the above-outlined issues.

Sincerely,

A handwritten signature in black ink, appearing to read 'P. Black', with a large, sweeping flourish extending to the right.

Peter F. Black

MILLS BLACK LLP

Counsel to Samsung Electronics America, Inc.

Exhibit B

Correspondence of SEA to OOCL

Deficiency Letter dated November 14, 2025



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Washington, DC 20036
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November 14, 2025

VIA EMAIL

Rebecca A. Fenneman, Esq.
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Christopher Raleigh
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Re: *Dkt. No. 24-17: Incomplete Production of OOCL in Response to SEA Discovery Requests*

Dear Ms. Fenneman and Mr. Raleigh:

We have had an opportunity to analyze the second batch of production of documents of Orient Overseas Container Line, Ltd. and OOCL (Europe), Ltd. (collectively "OOCL") in response to Samsung Electronics America, Inc.'s ("SEA" or "Complainant") First Set of Interrogatories and Requests for Production of Documents ("Initial Discovery Requests").

We have identified an extensive list of deficiencies that we bring to your immediate attention. Specifically, OOCL has not produced documents for the majority of core categories of information that SEA seeks and which go to the heart of SEA's Shipping Act claims.

This letter refers to the Bates stamped production beginning with OOCL_0000001 and ending with OOCL_0043175.

I. The Parties' Meet and Confer Session of October 3, 2025

At the October 3rd meet and confer session, SEA requested that OOCL do the following:

- Provide additional information regarding its demurrage and detention charging policies for Maher Terminal in New York and Long Beach Terminal in California in response to Interrogatory No. 3;
- Identify the departments responsible for handling demurrage and detention disputes in response to Interrogatory No. 18 and identify the departments for Interrogatory No. 16(a) rather than pointing generally to initial disclosures;
- Provide policy documents dated after June 16, 2022 in response to Interrogatory No. 7;
- Provide copies of its tariff in effect during the 2021-2022 period in response to Interrogatory No. 7;
- Drop its relevance objection as to Interrogatories Nos. 14 and 15 for years 2021 and 2022, which requires producing quarterly totals for demurrage and detention for those years; and
- Make best efforts to identify the Bates range of documents which are responsive to each interrogatory or request, to which OOCL agreed.

SEA asked OOCL to correct any misstatements in its October 10th letter by October 17th and to serve the agreed supplemental responses and documents. OOCL has not served verified supplemental answers or the agreed materials.

II. OOCL's Deficient Discovery Responses

Without limitation to the foregoing, SEA identifies the following deficiencies in OOCL's discovery responses:

A. OOCL's Improper Scope Objection

SEA'S Definition No. 23 stated as follows. "OOCL" or "Respondent" means Orient Overseas Container Line, Limited and OOCL (Europe) Ltd., individually and/or collectively, including their corporate parents, subsidiaries, affiliates, predecessors, successors and assigns, and all their officers, directors, employees, agents, representatives, subcontractors, and persons acting or purporting to act on their behalf in connection with one or more SEA Shipments.

OOCL's General Objection No. 2 objected as follows. OOCL objects to the Interrogatories, Document Requests, Definitions and Instructions to the extent that they construe "OOCL" or "Respondent" to include any of OOCL's agents and persons acting or purporting to act on OOCL's behalf. These Definitions impermissibly seek information and Documents beyond the custody, control or possession of OOCL.

Resolution. Further to the parties' discussion during the October 3rd Meet and Confer, OOCL has rescinded this objection.

B. Interrogatories

Interrogatory No. 3

Interrogatory No. 3. For each Marine Terminal identified in response to Interrogatory No. 1 and Inland Terminal identified in response to Interrogatory No. 2, describe OOCL's Policies in connection with the assessment and collection of Demurrage; such description to include, but not be limited to: (a) a description of how Demurrage is calculated, assessed, and collected; (b) whether Demurrage is guaranteed by OOCL to the Marine or Inland Terminal, and/or if Containers are released from a Marine or Inland Terminal prior to the payment of Demurrage, the portion or allocation of Demurrage that is retained or paid or otherwise represents remuneration of Demurrage to the Terminal as contrasted to Demurrage paid to or retained by OOCL; (c) whether the Policies are different for Containers moving under Store Door terms versus CY terms, and if so, in what way; (d) whether the Policies are different for Marine Terminals as contrasted with Inland Terminals, and if so, in what way; (e) whether the Policies are different with respect to different customers, shippers, or consignees, and if so, in what way; and (f) specify any differences or changes in such Policies during the Relevant Time Period.

OOCL's Response. OOCL objects to this Interrogatory because it requests information that is not within the possession, custody or control of OOCL, insofar as the practices, policies and procedures of the Marine Terminals and Inland Terminals that are the subject of this Interrogatory are established by the operators of the terminals and not by OOCL. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will answer this Interrogatory by producing non-privileged documents in its possession, custody or control which contain relevant information that is responsive to this Interrogatory to the extent that they exist.

Why the Response is Deficient. The interrogatory seeks OOCL's own policies and practice. That information is clearly within OOCL's possession, directly relevant to the charges assessed on SEA, and central to compliance with Commission guidance and the incentive principle. *See* 46 C.F.R. 502.141(e)(1) and 46 C.F.R. 502.145(b)(4). A promise of future documents is not a verified answer. OOCL agreed to provide terminal-specific policy information for Maher and Long Beach, confirming this information exists and is obtainable. OOCL must serve a verified narrative response that addresses each subpart and produce the referenced policy materials.

Interrogatory No. 4

Interrogatory No. 4. For each Marine Terminal identified in response to Interrogatory No. 1 and Inland Terminal identified in response to Interrogatory No. 2, describe OOCL's Policies for the return of empty Containers, including with regard to, but not limited to: (a) designating return locations; (b) any dual move requirements; (c) ensuring adequate availability for return of empty Containers; (d) time periods for notice and changes of availability designations; (e) for the determination of last free day/"stopping the clock" deadlines; (f) the extension of Free Time or waiver of Detention charges; (g) whether Detention was assessed or charged for days when the applicable Terminal was not open or not reasonably available to accept empty Container returns; and (h) any differences or changes in the foregoing during the

Relevant Time Period or with respect to Containers moving under Store Door terms versus CY terms.

OOCL's Response. In addition to the General Objections set forth above, OOCL objects to this Interrogatory because it seeks information that is not within the possession, custody or control of OOCL, insofar as the practices, policies and procedures for return of empty Containers to Marine Terminals and Inland Terminals are determined by the operators of the terminals and not by OOCL. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will answer this Interrogatory by producing non-privileged documents in its possession, custody or control which contain relevant information that is responsive to this Interrogatory to the extent that they exist.

Why the Response is Deficient. OOCL has provided no documents responsive to this request. Vague promises to produce documents to the extent they exist is not an answer. The policies are plainly relevant to the pleaded theories that, under store door terms, OOCL is responsible for inland movement and equipment return and allegedly assessed charges where OOCL did not provide adequate return opportunities. OOCL must serve a substantive narrative response and identify the governing written policies and change history, rather than resting on noncommittal "documents, if any" statement that offers neither content nor scope.

Interrogatory No. 5

Interrogatory No. 5. For each port or Marine Terminal identified in response to Interrogatory No. 1 and Inland Terminal identified in response to Interrogatory No. 2, for Containers out-gated on Motor Carriers, identify: (a) the total number of Container on the "street" (referring to Containers out-gated on Motor Carriers but not yet returned to a Carrier designated location); and (b) the total number of available empty return appointments or opportunities, in each case, for the shortest interval such information is tracked in the normal course of business or reasonably derivable from records kept in the normal course of business, with applicable dates sufficient to compare numbers and ratios of Containers on the street and availability for return over time in each port area for OOCL Containers generally, and for SEA Shipments.

OOCL's Response. OOCL objects to this interrogatory on the grounds that it is overly broad, unduly burdensome and seeks information which is not relevant nor calculated to lead to the discovery of admissible evidence insofar as it requests information regarding Containers without limitation and requests details about "return appointments or opportunities" without limitation. OOCL further objects to this interrogatory because it seeks information that is not within the possession, custody or control of OOCL, insofar as the practices, policies and procedures for obtaining "return appointments and opportunities" to return Containers at Marine Terminals and Inland Terminals are determined by the operators of the terminals and not by OOCL. Furthermore, during our meet and confer session on October 3, 2025, OOCL reasserted its relevance objection to this interrogatory.

Why the Response is Deficient. The information sought is plainly relevant. Counts of containers on the street compared to available empty-return appointments are central to whether OOCL's charges were reasonable and whether adequate return opportunities existed. Those facts go directly to the Shipping Act claims and defenses. This is not a request for terminal policies; it seeks OOCL's own records and data that OOCL uses in the ordinary course. Additionally, the

boilerplate overbreadth and burden objections are unsupported. The interrogatory is limited to identified marine and inland terminals, to containers actually outgated, to the 2021-2022 period, and to the shortest interval OOCL already tracks or can reasonably derive. This proportional request is aimed at a discrete set of fields OOCL uses to manage equipment, bill, and handle disputes.

Interrogatory No. 6

Interrogatory No. 6. For Q1, Q2, Q3, Q4 (e.g., each three-month period during a company's financial year that acts as a basis for periodic financial reports), during the Relevant Time Period, for Containers at Marine Terminals identified in response to Interrogatory No. 1 and Inland Terminals identified in response to Interrogatory No. 2, identify the total amount of Demurrage and Detention assessed, waived, and collected by or on behalf of OOCL in connection with such Containers, and separately identify: (a) such total Demurrage at Marine Terminals; (b) such total Demurrage at Inland Terminals; (c) the separate totals of Detention for Chassis and Detention for Containers; and (d) each of the foregoing separately for: (i) SEA Containers; (ii) other Store Door shipments (other than SEA Containers); and (iii) CY shipments.

OOCL's Response. In addition to the General Objections set forth above, OOCL objects to this interrogatory on the grounds that it is overly broad, burdensome and seeks information which is not relevant nor calculated to lead to the discovery of admissible evidence insofar as it requests information regarding shipments for which SEA is not the shipper, consignee or notify party.

Why the Response is Deficient. SEA has provided a clear, targeted request for quarterly totals the company necessarily maintains in its billing and collections systems. The interrogatory is confined to the defined Relevant Time Period and to identified marine and inland terminals, and it asks for assessed, waived, and collected demurrage and detention broken out by terminal type and movement type. That breakdown is central to the alleged reasonableness of OOCL's charges and practices that SEA challenges under the Shipping Act, including the store door vs. CY distinctions and the scale of waivers and collections over time. The totals are relevant to the pleaded counts on unreasonable charges and practices; OOCL's "non-SEA" relevance objection misses the point and does not excuse withholding responsive ledgers or reports. OOCL should withdraw the objections and produce quarterly reports or spreadsheets with the requested totals, and identify the records containing them.

Interrogatory No. 7

Interrogatory No. 7. Describe OOCL's Policies for arranging and providing Inland Transportation of Containers under Store Door terms from 2018 to the Present, including, but not limited to: (a) arranging Inland Transportation; (b) contracting for Motor Carriers; (c) contracting for inland rail carriage; (d) issuing work orders for Motor Carrier pickup; (e) determining responsibility for, and allocation of, charges for Demurrage and Detention in Inland Transportation between or among OOCL, the Motor Carrier, the railroad, the shipper, and/or the consignee; and (f) any changes in such practices, policies or procedures during the such time period, including any changes or differences with respect to SEA Shipments or shipments moving under Store Door terms as contrasted with CY terms.

OOCL's Response. OOCL objects to the time frame of “2018 to the Present” on the grounds that it is overly broad, unduly burdensome and not calculated to lead to the discovery of admissible evidence. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will answer this Interrogatory by producing non-privileged documents, for the time period of January, 2020 until December 31, 2023, that are in its possession, custody or control, which contain relevant information, that are responsive to this Interrogatory.

Why the Response is Deficient. Policy evolution across the pre-pandemic baseline, pandemic disruptions, and post-pandemic adjustments is directly relevant to reasonableness and the incentive principle. OOCL's partial time cut is arbitrary and would omit material changes. These materials are foundational to understanding OOCL's inland transportation policies under Store Door and CY terms and any changes during the relevant period. OOCL also agreed to provide copies of its tariff for 2021–2022, confirming it can pull policy sources when asked. OOCL must answer for 2018 to present and produce the 2021 and 2022 tariff copies.

Interrogatory No. 8

Interrogatory No. 8. For each Marine Terminal and Inland Terminal identified in response to Interrogatory Nos. 1 and 2, list each Motor Carrier and railroad with which OOCL has entered into an agreement to provide Inland Transportation for Containers, the dates or duration of such agreement(s), and the applicable rates for each item of service set forth in such agreement(s).

OOCL's Response. For each Marine Terminal and Inland Terminal identified in response to Interrogatory Nos. 1 and 2, list each Motor Carrier and railroad with which OOCL has entered into an agreement to provide Inland Transportation for Containers, the dates or duration of such agreement(s), and the applicable rates for each item of service set forth in such agreement(s). For each Marine Terminal and Inland Terminal identified in response to Interrogatory Nos. 1 and 2, list each Motor Carrier and railroad with which OOCL has entered into an agreement to provide Inland Transportation for Containers, the dates or duration of such agreement(s), and the applicable rates for each item of service set forth in such agreement(s).

Why the Response is Deficient. OOCL's response withholds the core information requested and offers only a vague “documents, if any” promise. SEA's interrogatory asks for the list of motor carriers and railroads with which OOCL contracted for inland transportation during the defined period, with dates and rate terms. This is squarely within OOCL's possession as to the contracting carrier on store door moves, which by definition requires OOCL to arrange and pay inland drayage and thus maintain vendor agreements and pricing. OOCL instead objects on breadth and relevance grounds. OOCL has produced no specific carrier agreements; the only item produced is a general CNT how-to policy, which is not a substitute for executed agreements or rate schedules. This information is directly relevant to SEA's claims about carrier-haulage obligations and the reasonableness of charges. OOCL's position that production is already “complete” only underscores the deficiency. OOCL must withdraw its objections and either provide a narrative answer identifying each carrier with agreement dates and rate items or produce all underlying agreements.

Interrogatory No. 14

Interrogatory No. 14. Provide the total amount of Demurrage charges for each fiscal quarter of each year from 2020 to 2025 that OOCL charged SEA in connection with SEA Shipments moving under Store Door terms.

OOCL's Response. In addition to the General Objections set forth above, OOCL objects to this interrogatory on the grounds that it is overly broad, burdensome and seeks information which is not relevant nor calculated to lead to the discovery of admissible evidence insofar as it requests information for the period from 2020 until 2025. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will answer this Interrogatory by producing non- privileged documents in its possession, custody or control, which contain relevant information, that are responsive to this Interrogatory.

Why OOCL's Response is Deficient. OOCL has failed to provide documents responsive to this Interrogatory, standing on objections to relevance with respect to years 2020, 2023, 2024, and 2025, and claiming that the request is burdensome regarding years 2021 and 2022. Quarterly detention totals from 2020 through 2025 are relevant and proportional because they establish baseline, pandemic-era, and post-pandemic patterns needed to evaluate whether charges in 2021-2022 were reasonable. The Amended Complaint places the dispute in a 2020-2022 arc of rising charges, making adjacent quarters plainly probative. OOCL should withdraw the objections and either provide the quarterly figures for 2020-2025 and identify the business records that contain them.

Interrogatory No. 15

Interrogatory No. 15. Provide the total amount of Detention charges for each fiscal quarter of each year from 2020 to 2025 that OOCL charged SEA in connection with SEA Shipments moving under Store Door terms.

OOCL's Response. In addition to the General Objections set forth above, OOCL objects to this interrogatory on the grounds that it is overly broad, burdensome and seeks information which is not relevant nor calculated to lead to the discovery of admissible evidence insofar as it requests information for the period from 2020 until 2025. Moreover, OOCL objects to this request on the grounds that SEA requests documents that are already in its possession. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will answer this Interrogatory by producing non-privileged documents in its possession, custody or control, which contain relevant information, that are responsive to this Interrogatory.

Why OOCL's Response is Deficient. OOCL has failed to provide documents responsive to this Interrogatory, standing on objections to relevance with respect to years 2020, 2023, 2024, and 2025, and claiming that the request is burdensome regarding years 2021 and 2022. Quarterly detention totals from 2020 through 2025 are relevant and proportional because they establish baseline, pandemic-era, and post-pandemic patterns needed to evaluate whether charges in 2021-2022 were reasonable. The Amended Complaint places the dispute in a 2020-2022 arc of rising charges, making adjacent quarters plainly probative. OOCL should withdraw the objections and either provide the quarterly figures for 2020-2025 and identify the business records that contain them.

Interrogatory No. 16

Interrogatory No. 16. For each SEA Shipment identified in response to Interrogatory Nos. 1 and 2, for which a Demurrage charge was collected by OOCL, identify: (a) the OOCL Person responsible for determining that SEA was responsible to pay the charge and the reason the OOCL Person determined that SEA was responsible to pay the charge, if any; (b) the basis on which OOCL determined at the time, if any, that assessing such charge on SEA was just and reasonable, and consistent with the FMC's rules with respect to Demurrage (including the incentive principle); and (c) whether or not circumstances outside of SEA's control, including but not limited to terminal congestion, unavailability of equipment, delays by motor carriers, or OOCL's performance, actions, or inactions caused or contributed to any delay in the pickup and delivery of the SEA Shipment to the contracted destination.

OOCL's Response. OOCL objects to this interrogatory on the grounds that it is overly broad, burdensome and not susceptible to answer through an Interrogatory. OOCL asserts that persons who may have knowledge of the subjects set forth in this Interrogatory were identified in OOCL's Initial Disclosures. Further, OOCL will answer this Interrogatory by producing non-privileged documents which contain relevant information for Store Door shipments that is responsive to this Interrogatory.

Why the Response is Deficient. This is core liability information well within OOCL's knowledge. Identifying potential witnesses is not a substitute for verified answers that explain who decided to charge SEA for demurrage on each affected container, why OOCL determined that the decision was reasonable under the Commission's incentive principle, and whether external factors drove the delays on which the challenged demurrage charges were assessed. OOCL's promise to provide policy documents dated after June 16, 2022 and to identify departments for demurrage and detention disputes is not responsive to the specific question asked under this interrogatory. OOCL must provide a verified answer addressing each subpart for SEA Shipments.

Interrogatory No. 18

Interrogatory No. 18. Provide the contact information for the OOCL individual(s) and/or department(s) responsible for handling and/or responding to Demurrage and Detention inquiries or disputes, and those with managerial responsibility for Store Door moves, during the Relevant Time Period, and, if different, specifically with respect to SEA Shipments.

OOCL's Response. Subject to the General Objections set forth above, OOCL hereby responds that persons who may have knowledge of the subjects set forth in this Interrogatory were identified in OOCL's Initial Disclosures.

Why the Response is Deficient. Initial Disclosures are not a directory of operational contacts. OOCL agreed to identify the departments responsible for handling demurrage and detention disputes. OOCL must provide department names, functional descriptions, and contact information sufficient to route disputes during the Relevant Time Period for SEA Shipments.

C. Requests for Production of Documents

Request for Production No. 3

Request for Production No. 3. Produce all supporting Documents and records in connection with the SEA Shipments that are the subject of Interrogatory Nos. 1 and 2, including all freight invoices, bills of lading, sea waybills, arrival notices, Motor Carrier work orders, Motor Carrier invoices, Demurrage invoices, Detention invoices, delivery receipts, packing lists, Marine and Inland Terminal data and records, railroad records, Motor Carrier records, and payment records.

OOCL's Response. In addition to the General Objections set forth above, OOCL objects to this Request as overly broad, burdensome and vague because it requests "all supporting Documents and records in connection with the SEA Shipments..." Subject to and without waiving the foregoing objections and the specific objections set forth in OOCL's Answers to Nos. 1 and 2 of the Interrogatories propounded by SEA, OOCL hereby responds that it will produce non-privileged documents in its possession, custody or control which are relevant and responsive to this Request.

Why the Response is Deficient. The request is narrowly tailored to the SEA shipments identified in Interrogatories 1 and 2 and seeks the ordinary-course records that document those shipments end to end: freight invoices, bills of lading and sea waybills, arrival notices, motor-carrier work orders and invoices, demurrage and detention invoices, delivery receipts, terminal and rail data, and payment records. These materials go to the heart of SEA's Shipping Act claims and invoice-content issues, including OOCL's store door obligations, the assessment and waiver of demurrage and detention, and whether invoices contained the required information. OOCL has failed to produce a substantial portion of these categories, while also asserting that its production is "complete," which only underscores the deficiency. Boilerplate overbreadth and burden objections do not excuse withholding documents for the defined period and scope; SEA's discovery defines a focused relevant period and seeks records OOCL maintains or controls as the contracting carrier on store door moves, including through its U.S. agent. OOCL should promptly produce the missing shipment-level records for the identified SEA containers, including the enumerated invoices, waybills, arrival notices, terminal data, motor-carrier records, and complete payment histories. If OOCL contends any category does not exist for particular shipments, it must say so expressly and identify the searches performed and systems consulted; a vague promise to produce "non-privileged documents" is not a substantive response to RFP 3.

Request for Production No. 4

Request for Production No. 4. Produce all Documents reflecting communications pertaining to SEA Shipments that are the subject of Interrogatory Nos. 1 and 2, relating in any way to the subject of Demurrage or Detention charges.

OOCL's Response. In addition to the General Objections set forth above, OOCL objects to this Request as overly broad, burdensome and vague because it requests "all Documents reflecting Communications pertaining to SEA Shipments..." Subject to and without waiving the foregoing objections, OOCL hereby responds that it will produce non-privileged documents in its possession, custody or control which are relevant and responsive to this Request.

Why the Response is Deficient. OOCL's response offers boilerplate objections and a vague promise to produce documents, yet it has produced none of the actual communications about SEA's demurrage and detention disputes, even though SEA has produced its side of those same threads. The request is narrow: it targets communications about the identified SEA shipments and two issues at the core of the case, so overbreadth and vagueness objections are improper. These communications are central to claims that OOCL lacked just and reasonable billing and dispute-resolution practices and issued inadequate invoices, are consequently plainly relevant, and must be in OOCL's custody. Compounding this, OOCL stated at our October 3rd meet and confer session that it believes its production is "complete," confirming that no responsive communications have been provided. OOCL should withdraw its objections and promptly produce all responsive communications or state unequivocally that none exist and identify the systems searched and steps taken.

Request for Production No. 5

Request for Production No. 5. Produce all Documents identified in the "categories of documents and materials that may be used to support its defenses" in Section II ("Documents & Tangible Things") of OOCL's Initial Disclosures pertaining to SEA Shipments, including in the specifically listed categories: Correspondence; Long-dwell letters; Service Contracts, including all drafts, filed versions, amendments thereto, and related Documents and correspondence; Bills of lading, seaway bills, arrival notices, bills of affreightment; Historical tariff publications and records; Shipment records including lifting reports; Arrival notices; Job orders/delivery orders; Invoices and payments; and Notes from in-person and online meetings or discussions between Complainant and Respondent and their current and former employees and agents.

OOCL's Response. In addition to the General Objections set forth above, OOCL objects to this Request as overly broad, burdensome and vague because it requests "all Documents" identified, including, and regarding the various subjects iterated above. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will produce non-privileged documents in its possession, custody or control which are relevant and responsive to this Request.

Why the Response is Deficient. This request asks OOCL to produce the very categories it identified in its Initial Disclosures as materials it may use to support its defenses, limited to SEA shipments. OOCL responded with boilerplate and a vague promise, but has not produced core categories. We are still missing, among other things, long-dwell letters, correspondence, service contracts and all drafts/amendments, bills of lading, sea waybills, arrival notices, historical tariff publications, shipment/lifting records, job orders or delivery orders, invoices and payment records, and notes from meetings between the parties and their agents. Given OOCL placed these categories at issue and they are tethered to identified SEA shipments, relevance and proportionality are self-evident. Please confirm that OOCL will withdraw its objections and produce the missing materials in a reasonably usable native format with full family integrity and searchable text, or identify the records already produced that satisfy this request. For any category not maintained, state that unequivocally and describe the systems searched and the steps taken, and serve a privilege log for any withheld items.

Request for Production No. 6

Request for Production No. 6. Produce all OOCL agreements with: (a) Marine Terminals identified in response to Interrogatory No. 1 and Inland Terminals identified in response to Interrogatory No. 2, involved in the storage and movement of Containers used for SEA Shipments, and (b) CNTs, OOCL house truckers, and railroads involved in the movement of the Containers used for SEA Shipments and all associated Documents relating to the deliberation, consideration, and negotiation of such agreements and their terms and conditions.

OOCL's Response. In addition to the General Objections set forth above, OOCL objects to this Request as overly broad, unduly burdensome, and seeks information which is not relevant nor calculated to lead to the discovery of admissible evidence. OOCL further objects on the grounds that documents related to CNTs are likely to be in the possession of SEA. Finally, this Request seeks information that may be subject to confidentiality agreements and will be produced upon the entry of a confidentiality order in this proceeding.

Why the Response is Deficient. This request seeks OOCL's agreements with the marine and inland terminals identified in Interrogatories 1 and 2, and with CNTs, OOCL house truckers, and railroads used on SEA shipments, plus related negotiation materials. OOCL has produced none. These contracts are directly relevant to SEA's claims and OOCL's defenses because they govern return locations, appointment and return practices, inland carrier obligations, pricing and surcharges, and allocation of risk and responsibility. They are not in SEA's possession. SEA would not have OOCL's terminal, CNT, house trucker, or railroad agreements or the associated rate schedules and amendments. Confidentiality is not a basis to withhold. We have agreed to a confidentiality order in this proceeding, so OOCL should produce under that protection. To move this forward in good faith, we will narrow the request to agreements in effect during the relevant time at the terminals identified in Interrogatories 1 and 2 and to the CNT, house trucker, and railroad agreements actually used for SEA shipments during the same period, including executed contracts, amendments, attachments, exhibits, statements of work, addenda, rate sheets, and any side letters, together with key communications reflecting negotiated terms. Please confirm OOCL will withdraw its objections and produce these materials or, if OOCL maintains that any category does not exist, state that position clearly and identify the systems searched and steps taken. If third-party consent is required, identify the counterparties so we can address it promptly.

Request for Production No. 7

Request for Production No. 7. Produce all Documents relating to or reflecting agreements between OOCL and any Motor Carrier and OOCL and any railroad in connection with the SEA Shipments that are the subject of Interrogatory No. 8.

OOCL's Response. OOCL objects to this request on the grounds that it seeks information that is not relevant or calculated to lead to the discovery of admissible evidence. Subject to the foregoing objection, the General Objections set forth above and the specific objections set forth in OOCL's Answers to No. 8 of the Interrogatories propounded by SEA, OOCL hereby responds that it will produce non-privileged documents in its possession, custody or control which are relevant and responsive to this Request. As a note, this Request seeks information that may be subject to confidentiality agreements and will be produced upon the entry of a confidentiality order in this proceeding.

Why the Response is Deficient. This request seeks documents reflecting OOCL's agreements with motor carriers and railroads used on the SEA shipments identified in Interrogatory 8. OOCL has produced no executed carrier or rail agreements. The only items located are a generic CNT "how to arrange" policy and what appears to be a summary related to Harvest, neither of which substitutes for the underlying contracts, amendments, rate sheets, statements of work, addenda, or side letters. These agreements are directly relevant to SEA's claims and OOCL's defenses because they set the obligations, service levels, pricing, and return practices that drive demurrage and detention outcomes on store door moves. They are within OOCL's possession and not reasonably in SEA's files. If OOCL maintains that no executed agreements exist for any vendor, please confirm that position and produce the alternative records reflecting the operative terms for those moves, such as rate confirmations, job orders, tenders, and payment terms. Otherwise, please withdraw the objections and produce the agreements.

Request for Production No. 8

Request for Production No. 8. In connection with OOCL's Demurrage and Detention charges issued on SEA Shipments, produce all studies, analyses, tracking data, reports, summaries, presentations, memorandums, etc. relating to the provision of Chassis at Inland Terminals.

OOCL's Response. Subject to the General Objections set forth above, OOCL hereby responds that it will produce non-privileged documents in its possession, custody or control which are relevant and responsive to this Request, if any.

Why the Response is Deficient. This request seeks studies, analyses, tracking data, reports, summaries, presentations, and memoranda concerning chassis provision at inland terminals as it relates to OOCL's demurrage and detention on SEA shipments. OOCL has produced none. These materials are directly relevant because, under store door terms, OOCL is responsible for inland movement and provision of chassis; chassis shortages and related inland performance are central to the reasonableness of demurrage and detention and to the pleaded theories. Please withdraw the boilerplate objections and produce the responsive chassis-related materials in a reasonably usable form, or state unequivocally that no such documents exist and identify the systems searched and steps taken. As directed in SEA's Instruction No. 14, for any items withheld, OOCL shall provide a privilege log which states with particularity the nature and basis of its claim of privilege in sufficient detail to permit the FMC to determine whether OOCL's claim is cognizable.

Request for Production No. 9

Request for Production No. 9. Produce all Documents relating to OOCL's cost, pricing, revenue, or profit from freight and from Demurrage and Detention for U.S. destinations in connection with Store Door Container moves as contrasted with CY moves (including studies, analyses, tracking data, reports, summaries, presentations, memorandums, etc.).

OOCL's Response. In addition to the General Objections set forth above, OOCL objects to this request on the grounds that it is overly broad, burdensome and seeks information which is not relevant nor calculated to lead to the discovery of admissible evidence.

Why the Response is Deficient. This request seeks documents showing OOCL's cost, pricing, revenue, or profit from freight and from demurrage and detention for U.S. store door moves contrasted with CY moves. OOCL has produced none and stands on overbreadth and relevance objections. The request is squarely relevant because these materials illuminate whether demurrage and detention were reasonable, and whether detention and demurrage operated as a revenue source on store door moves compared with CY. They also bear on damages and any mitigation defenses. The request is proportional as narrowed to the Relevant Period and to the U.S. shipments and terminals at issue. In good faith, we narrow our ask to the Relevant Period only, limited to U.S. destinations and to the terminals and vendors used for SEA shipments. Please withdraw the objections and produce the responsive materials. If OOCL contends no such analyses exist, state that unequivocally and describe the systems searched and steps taken. As directed in SEA's Instruction No. 14, for any items withheld, OOCL shall provide a privilege log which states with particularity the nature and basis of its claim of privilege in sufficient detail to permit the FMC to determine whether OOCL's claim is cognizable.

Request for Production No. 10

Request for Production No. 10. Produce all Documents reflecting non-privileged internal communications and all external communications regarding impacts on intermodal transportation in the U.S. relating to port congestion, chassis availability, and Motor Carrier capacity/availability, including, but not limited to, the assessment, collection, waiver, or allocation of responsibility for Demurrage and Detention charges during the Relevant Time Period.

OOCL's Response. In addition to the General Objections set forth above, OOCL objects to this request on the grounds that it is overly broad, burdensome and seeks information which is not relevant nor calculated to lead to the discovery of admissible evidence. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will produce non-privileged documents in its possession, custody or control which are relevant and responsive to this Request.

Why the Response is Deficient. This request seeks all non-privileged internal and external communications about U.S. intermodal impacts during the Relevant Period, including port congestion, chassis availability, and motor carrier capacity and how those conditions affected the assessment, collection, waiver, or allocation of demurrage and detention. This is directly relevant to the reasonableness of OOCL's practices and charges and is proportional as limited to the Relevant Period. OOCL's response relies on boilerplate objections and a vague promise to produce, but we have not received the underlying communications. Please confirm that OOCL has produced the full extent of responsive communications and, if not, when it will do so. In the same confirmation, identify the custodians searched, the date ranges applied, the systems and repositories searched email, shared drives, ticketing or dispute systems, the search terms used including any non-English variants, whether de-duplication was applied, and the handling of families and attachments. As directed in SEA's Instruction No. 14, for any items withheld, OOCL shall provide a privilege log which states with particularity the nature and basis of its claim of privilege in sufficient detail to permit the FMC to determine whether OOCL's claim is cognizable.

Request for Production No. 11

Request for Production No. 11. Produce all Documents, including Policies, standards, guidelines, or analyses, concerning OOCL's compliance with the Shipping Act of 1984, 46 U.S.C. §§ 41102(c), 41102(d), 41104 as amended, including regulations, interpretive guidance, and adjudicatory decisions relating thereto, with respect to Store Door moves and Demurrage and Detention in the U.S.

OOCL's Response. In addition to the General Objections set forth above, OOCL objects to this request on the grounds that it requests documents that are protected from disclosure by the attorney-client and work product privileges. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will produce non-privileged documents in its possession, custody or control which are relevant and responsive to this Request.

Why the Response is Deficient. This request seeks non-privileged policies, standards, guidelines, or analyses concerning OOCL's compliance with the Shipping Act for U.S. store door moves and demurrage and detention during the Relevant Period. OOCL has not produced those materials and relies on blanket privilege assertions that do not cover ordinary-course compliance documents or final policies. Please confirm that OOCL has produced the full set of non-privileged materials during the Relevant Period. If OOCL is withholding documents as privileged, serve a privilege log identifying authors, recipients, dates, and subject matter sufficient to assess the claim, and produce segregable business or factual portions. To avoid further dispute, identify the custodians searched, the repositories searched email, shared drives, collaboration platforms, ticketing or dispute systems, and the search terms and date ranges used including non-English variants, and confirm de-duplication and family-complete production. If no responsive documents exist, say so plainly and describe the searches performed.

Request for Production No. 12

Request for Production No. 12. Produce all Documents reflecting OOCL's Policies, internal deliberations, reports, memorandums, summaries, presentations, or analyses pertaining to Demurrage and Detention from 2018 to the present, including, but not limited to, policy manuals, procedure manuals, guidance, training materials, memorandums, and external information or communications with any Ocean Carrier and/or any entity or organization with which OOCL and/or other Ocean Carriers are a member or exchanged information concerning Demurrage or Detention.

OOCL's Response. In addition to the General Objections set forth above, OOCL objects to the time frame of "2018 to the Present" on the grounds that it is overly broad, unduly burdensome and not calculated to lead to the discovery of admissible evidence. OOCL further objects to this request on the grounds that it requests documents that are protected from disclosure by the attorney-client and work product privileges. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will produce non-privileged documents, for the time period of January 1, 2020, to December 31, 2023 that are in its possession, custody or control which are relevant and responsive to this Request.

Why the Response is Deficient. This request seeks OOCL's non-privileged policies, standards, guidelines, training, change logs, internal deliberations, reports, memoranda, summaries, presentations, and analyses concerning demurrage and detention, including external information exchanges with industry groups and other carriers. These materials are directly relevant to the reasonableness of OOCL's D&D practices and any policy changes made during the Relevant Period. OOCL's time-frame objection is not persuasive. Pre-period materials show baseline policy and training, and post-period materials show whether practices persisted or were corrected. Please confirm that OOCL has produced the full extent of responsive internal and external communications within this scope, including communications addressing intermodal impacts tied to D&D policy and practice port congestion, chassis availability, and motor carrier capacity and how those conditions affected assessment, collection, waiver, or allocation of D&D during the Relevant Period. If not complete, identify when the production will be finished and provide the search methodology used: custodians, date ranges, repositories searched email, shared drives, collaboration tools and chat, ticketing or dispute systems, the search terms including non-English variants, de-duplication, and how families and attachments were handled. To move this forward in good faith, we will limit the request to January 1, 2020 through the present. If OOCL is withholding materials as privileged, serve a privilege log identifying authors, recipients, dates, and subject matter sufficient to assess the claim, and produce any segregable business or factual portions. If OOCL contends that responsive documents do not exist, state that unequivocally and describe the systems searched and steps taken.

Request for Production No. 13

Request for Production No. 13. Produce all Documents sufficient to support responses to Interrogatory Nos. 16 and 17, including invoices provided to SEA that explained the reason for the Demurrage and Detention, why OOCL deemed SEA to be at fault or otherwise responsible for such charges, and the OOCL Person responsible for approving the relevant invoices.

OOCL's Response. In addition to the General Objections set forth above, OOCL objects to this request on the grounds that SEA requests documents that are already in its possession. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will produce non- privileged documents which contain relevant information for Store Door shipments that are responsive to this Request.

Why the Response is Deficient. This request seeks documents sufficient to support OOCL's answers to Interrogatories 16 and 17, including the actual invoices sent to SEA that explain the reason for demurrage or detention, why OOCL deemed SEA responsible, and the OOCL person or department that approved each invoice. OOCL's "SEA already has them" objection misses the mark. SEA may hold some invoice copies, but not OOCL's final approved versions with complete fields, internal reasons, approval records, audit trails, dispute notes, or the identities of approvers. Those materials sit with OOCL and are necessary to evaluate the basis for fault determinations and charge approvals. Please confirm that OOCL will withdraw its objections and produce, for the Relevant Period and SEA store door shipments: 1 the complete set of demurrage and detention invoices transmitted to SEA in reasonably usable native format; 2 any accompanying statements or data fields that state the reason and fault allocation; 3 internal approval records showing the OOCL approver name, title, department, and timestamp; and 4

related business records sufficient to explain charge calculations, last free day, start and stop time, waivers or extensions, adjustments, and payment application. If OOCL contends these materials have already been produced, state that. If any portion is withheld as privileged, serve a privilege log. Also identify the custodians and systems searched.

Request for Production No. 14

Request for Production No. 14. Produce all Documents regarding OOCL's efforts to collect Demurrage and Detention charges from SEA.

OOCL's Response. In addition to the General Objections set forth above, OOCL objects to this request on the grounds that it is overly broad, unduly burdensome, and requests documents that are already in SEA's possession. Subject to and without waiving the foregoing objections, OOCL hereby responds that it will produce non-privileged documents which contain relevant information for Store Door shipments that are responsive to this Request.

Why the Response is Deficient. This request seeks all documents regarding OOCL's efforts to collect demurrage and detention from SEA. OOCL's boilerplate objections and vague promise to produce are not a substitute for the underlying records, and its production to date is insufficient and appears incomplete. These materials are plainly relevant to the reasonableness of OOCL's charges and practices. SEA may have some outbound emails or invoices, which it has already produced, but the core collection records reside with OOCL: demand letters and statements of account, emails and call notes, aging and A/R reports, credit-hold and release notices, internal collection and approvals, write-off/waiver requests and decisions, payment application and reconciliation records, communications with any third-party collectors, and any related policies. Please confirm that OOCL will withdraw its objections and produce the full set of non-privileged collection materials for SEA store door shipments during the Relevant Period. If OOCL contends any category has already been produced, state that. If OOCL maintains that responsive documents do not exist, state that unequivocally and describe the searches performed. As directed in SEA's Instruction No. 14, for any items withheld, OOCL shall provide a privilege log which states with particularity the nature and basis of its claim of privilege in sufficient detail to permit the FMC to determine whether OOCL's claim is cognizable.

D. Missing Sources and Container-Level Data

There are substantial gaps in the documents that OOCL has elected to produce to date, as SEA identifies below:

Per-Container Reasons for Demurrage and Detention. Despite SEA's requests, OOCL has not provided the requested listing of the reasons why demurrage was assessed on each container as requested by Interrogatory No. 16, or why detention was assessed on each container as requested by Interrogatory No. 17, or the supporting documents as requested by Request for Production No. 13. This information is necessary to evaluate whether charges were just and reasonable consistent with the Commission's incentive principle. Such information is plainly within the scope of discovery under Commission Rule 502.141(e). Further, because OOCL was the entity that assessed each demurrage or detention charge on the affected SEA containers, OOCL must presumably have information explaining why it assessed each such demurrage or

detention charge. While we have located general policies in the form of a PowerPoint from the 2021 NAG General Meeting as well as the DD Management Guideline from November of 2020, neither documents the specific reasons as to why each of the affected containers incurred its respective disputed charges. Accordingly, OOCL must produce a verified container-level log for all SEA Shipments during the Relevant Time Period, for both Store Door and CY moves, in a usable spreadsheet or database format.

China-Based Sources. To date, OOCL has produced no files from China. Respondent party Orient Overseas Container Line, Ltd. is a Hong Kong based entity, and SEA understands that Hong Kong-based commercial, operations, and finance personnel and systems were involved in bookings, equipment control, terminal coordination, and billing inputs for SEA Shipments. We have located a few email chains in the documents produced thus far that include addresses from the Hong Kong office, but none of those appear to have originated from that office. The absence of any Hong Kong-based custodial or system collections is not credible and indicates an incomplete production. OOCL must confirm what discovery searches and collections were performed for Hong Kong-based custodians and repositories, including email, shared drives, ticketing or disputes systems, and billing systems, and must produce those materials. If any source was not collected, OOCL must identify the source, the custodian or owner, the time period, and the reason for not collecting such materials.

Europe-Based Sources. To date, OOCL has produced no files from England. Respondent party OOCL (Europe), Ltd. is based in Levington, England, and SEA understands that OOCL (Europe), Ltd. personnel acted jointly with Orient Overseas Container Line, Ltd. personnel in connection with SEA Shipments. We have located a few email chains that include addresses from the Levington office, but none of those appear to have originated from that office. The absence of any Levington-based custodial or system collections is not credible and indicates an incomplete production. OOCL must confirm what discovery searches and collections were performed for Levington-based custodians and repositories, including email, shared drives, ticketing or disputes systems, and billing systems, and must produce those materials. If any source was not collected, OOCL must identify the source, the custodian or owner, the time period, and the reason for not collecting such materials.

Chassis Data and Availability. In the produced documents, SEA has not located any documents relating to the availability of Chassis during the relevant period. We continue to await information and documents requested in Interrogatory Nos. 6 & 9 and Requests for Production Nos. 8 & 10, related to tracking data, reports, terminal congestion, availability of Chassis, and totals for detention for Chassis at Marine and Inland Terminals. SEA expects that such data must be held by OOCL, as one would reasonably expect a carrier such as OOCL to have relied upon such information in making its decisions regarding container pick-up and returns which led to the incurring of Detention and Demurrage charges by OOCL's customers.

III. Required Supplementation

SEA requests that OOCL produce the following by November 28, 2025, however if additional time is necessary, kindly advise:

1. Verified supplemental answers to Interrogatories Nos. 3, 4, 5, 6, 7, 8, 16, 17, and 18 addressing each subpart;
2. Policy materials and terminal-specific demurrage and detention information for Maher Terminal and Long Beach Terminal;
3. Policy documents dated after June 16, 2022;
4. OOCL's tariff in effect during 2021 and 2022;
5. Quarterly totals for demurrage and detention for 2021 and 2022 responsive to Interrogatories Nos. 14 and 15;
6. Shipment-level records for the SEA containers identified in Interrogatories 1 and 2, including freight invoices, bills of lading, sea waybills, arrival notices, motor carrier work orders and invoices, demurrage and detention invoices, delivery receipts, packing lists, terminal and inland terminal data, railroad records, motor carrier records, and complete payment histories;
7. Custodial and system collections from China-based sources, with a description of sources collected and any sources not collected and why;
8. Custodial and system collections from Levington, UK-based sources, with a description of sources collected and any sources not collected and why;
9. A verified container-level demurrage and detention reason log as described above, in native format;
10. All internal and external communications concerning demurrage or detention for the SEA shipments;
11. All agreements in effect during the Relevant Period with the identified marine and inland terminals, and with CNTs, OOCL house truckers, and railroads used on SEA shipments, including executed contracts, amendments, attachments, statements of work, rate sheets, side letters, and core negotiation materials. If counterparty consent is required, identify the counterparties;
12. RFP 3 shipment-level records for the SEA containers identified in Interrogatories 1 and 2, including freight invoices, bills of lading, sea waybills, arrival notices, motor carrier work orders and invoices, demurrage and detention invoices, delivery receipts, packing lists, terminal and inland terminal data, railroad records, motor carrier records, and complete payment histories;
13. RFP 4 all internal and external communications concerning demurrage or detention for the SEA shipments;
14. RFP 5 the defense-category materials from OOCL's Initial Disclosures for SEA shipments, including correspondence, long-dwell letters, service contracts and all

drafts and amendments, historical tariff publications and records, shipment and lifting reports, arrival notices, job orders or delivery orders, invoices and payments, and notes of meetings between the parties and their agents;

15. RFP 6 agreements in effect during the Relevant Period with the identified marine and inland terminals, and with CNTs, OOCL house truckers, and railroads used on SEA shipments, including executed contracts, amendments, attachments, statements of work, rate sheets, side letters, and core negotiation materials;
16. RFP 7 executed agreements or, if none exist, the operative records for those relationships rate confirmations, tenders, job orders, payment terms for motor carriers and railroads used on SEA shipments;
17. RFP 8 chassis provision materials for inland terminals studies, analyses, tracking data, reports, summaries, presentations, memoranda used during the Relevant Period;
18. RFP 9 documents reflecting OOCL's cost, pricing, revenue, or profit for U.S. store door moves contrasted with CY during the Relevant Period;
19. RFP 10 non-privileged internal and external communications regarding U.S. intermodal impacts during the Relevant Period port congestion, chassis availability, motor carrier capacity and their effect on assessment, collection, waiver, or allocation of demurrage and detention;
20. RFP 11 non-privileged compliance materials policies, standards, guidelines, training, and implementation documents for U.S. store door moves and demurrage and detention during the Relevant Period. Provide the search methodology and a privilege log for any withholdings;
21. RFP 12 non-privileged policies, deliberations, reports, memoranda, summaries, presentations, and analyses concerning demurrage and detention from January 1, 2020 to present, including external information exchanges with CNTs and carriers. Provide the search methodology and a privilege log for any withholdings;
22. RFP 13 documents sufficient to support Interrogatories 16 and 17;
23. RFP 14 collection-related materials for SEA demurrage and detention demand letters and statements of account, emails and call notes, A/R aging reports, hold and release notices, internal workflows and approvals, write-off or waiver requests and decisions, payment application and reconciliation, communications with any third-party collectors, and related policies;
24. Either stipulate that there were no SEA CY moves during the Relevant Period or identify each SEA shipment that was CY or converted to CY from store door with the date, terminal, lane, and supporting documents;

25. Privilege logs for any materials withheld under attorney-client privilege or work product, sufficient to evaluate the claim; and
26. A listing of the Bates range of documents which are responsive to each Interrogatory or Request for Production.

If OOCL does not comply, SEA will move to compel under 46 C.F.R. 502.141 and 502.145, seek appropriate relief, including fees, and ask the Presiding Officer to overrule OOCL's improper objections.

SEA reserves all its rights in connection with discovery in this matter.

Sincerely,

A handwritten signature in black ink, appearing to be 'P. Black', with a large, sweeping flourish extending to the right.

Peter F. Black
MILLS BLACK LLP
Counsel to Samsung Electronics America, Inc.

Exhibit C

*Email Chain Regarding Motion to Extend Page Limits and Motion to
Compel Discovery*

December 11-14, 2025

Subject: Re: FMC Docket No. 24-17 - SEA v. OOCL

Date: Sunday, December 14, 2025 at 20:47:54 Eastern Standard Time

From: Peter F. Black <pblack@millsblack.com>

To: Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

CC: Raleigh, Christopher <CRaleigh@cozen.com>, Rohde, Wayne <WRohde@cozen.com>, Kaya Massey <kmassey@jeffreyfenneman.com>, Sobotta, Kathryn <KSobotta@cozen.com>, Nick Webb <nwebb@jeffreyfenneman.com>, Allen Black <hablack@millsblack.com>, Imran Shaukat <ishaukat@millsblack.com>, Kate Fitzgerald <kfitzgerald@millsblack.com>

Hi Rebecca,

Monday afternoon works for us. I'll shoot around a calendar invite for 3:30pm.

I'll revert on the mediation specifics.

Very best regards,

Peter

Peter F. Black

[Mills Black LLP](#)
[1215 19th Street, NW](#)
[Washington, DC 20036](#)

Main: [+1 \(202\) 967-4100](tel:+12029674100)

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Email: pblack@millsblack.com

*Admitted in DC, MD, NY, CA, WA, & LA.

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From: Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

Sent: Friday, December 12, 2025 16:39

To: Peter F. Black <pblack@millsblack.com>

Cc: Raleigh, Christopher <CRaleigh@cozen.com>; Rohde, Wayne <WRohde@cozen.com>; Kaya Massey <kmassey@jeffreyfenneman.com>; Sobotta, Kathryn <KSobotta@cozen.com>; Nick Webb <nwebb@jeffreyfenneman.com>; Allen Black <hablack@millsblack.com>; Imran Shaukat <ishaukat@millsblack.com>; Kate Fitzgerald <kfitzgerald@millsblack.com>

Subject: Re: FMC Docket No. 24-17 - SEA v. OOCL

Dear Peter,

Thank you for yours.

As noted in our letter, we are preparing to complete production of the additional documents and serve supplemental answers which SEA has requested and will produce/serve them before the

deadline.

We request a brief conference call to understand the precise requests about which you are moving to compel. We will then advise if we consent to the motion for additional pages. If we consent, it would be with the understanding that the same number of additional pages will be granted to OOCL in its response.

For scheduling purposes, we can be available Monday afternoon at your convenience.

We are also prepared to file shortly a motion with respect to SEA's deficiencies. We will not require more than ten pages.

We will confer with our client regarding SEA's renewed request for mediation; we're assuming this will be one day, in-person. Could you remind us of the mediator you propose and let us know whether you have any dates in mind?

Best,
Rebecca

On Fri, Dec 12, 2025 at 2:52 PM Peter F. Black <pblack@millsblack.com> wrote:

Dear Chris and Rebecca,

Thank you for your letter of yesterday (December 11). We appreciate OOCL's agreement to supplement production in response to many of SEA's Requests. Unfortunately, there are still items over which we disagree, and we find several of the responses to still be insufficient. Accordingly, we anticipate filing a First Motion to Compel shortly on the items that the parties have not been able to resolve to date.

We expect our forthcoming Motion to be over 10 pages however, so we will be filing a motion requesting the ALJ's leave to exceed the non-dispositive motion page limits. Since we expect that any response to such a motion would likely also exceed 10 pages, we think it makes sense to file a consent or joint motion to extend the page limits for both the Motion and any response, instead of having us both submit motions requesting leave. Kindly advise OOCL's position on such a motion.

Additionally, in light of SEA's completion of production, I am following up on our discussion of November 19th to inquire if OOCL is now willing to engage in mediation to try and resolve the issues between the parties.

Very best regards,
Peter

Peter F. Black

[Mills Black LLP](#)

1215 19th Street, NW
Washington, DC 20036

Main: +1 (202) 967-4100

Exhibit D

Correspondence of SEA to OOCL

*Letter Memorializing Meet & Confer of December 15th, dated
December 19, 2025*



1215 19th Street, NW
Washington, DC 20036
MillsBlack.com

PETER F. BLACK
Partner
pblack@millsblack.com
+ 202.967.4103 (D)
+ 646.902.1773 (C)

December 19, 2025

VIA EMAIL

Rebecca A. Fenneman, Esq. (RFenneman@JeffreyFrenneman.com)
Jeffrey/Fenneman Law + Strategy, PLLC
700 12th Street, NW, Suite 700
Washington, DC 20005

Christopher Raleigh (CRaleigh@cozen.com)
Cozen O'Connor
2001 M Street NW, Suite 500
Washington, DC 20036

Re: *FMC Docket No. 24-17 - SEA v. OOCL*

Dear Rebecca and Chris:

This letter memorializes the parties' meet and confer on Monday, December 15, 2025, regarding outstanding discovery matters, SEA's contemplated Motion to Compel Discovery, and possible mediation.

1. *Time Frames (SEA's Interrogatories Nos. 6, 7, 14, and 15; RFP Nos. 10 and 12).*

The parties confirmed that they disagree about the applicable time frame for discoverable materials. SEA's position is that the time frames stated in its discovery requests are appropriate and proportional. In particular, SEA seeks (i) policy, training, guidance, and related demurrage and detention materials from 2018 to present, and (ii) quarterly totals for SEA-specific demurrage and detention assessed, waived, and collected across the requested 2020–2025 period. OOCL's position is that discovery should be limited to a narrower period including limiting SEA's requests for quarterly totals to 2020–2022 and limiting policy-related materials to a shortened period rather than the requested 2018 to present.

A Motion to Compel as to Interrogatories Nos. 6, 7, 14, and 15 and Requests for Production Nos. 10 and 12 appears timely in light of the disagreement with respect to appropriate time frames.

2. *Scope of Request and Response (Interrogatories Nos. 8 and 19; RFP Nos. 6 and 7).*

The parties also confirmed that they disagree about the scope of relevant materials with respect to certain SEA discovery requests. OOCL's position is that particular responses and productions should be limited to agreements, communications, and other materials concerning only customer-nominated truckers (CNTs) that transported SEA shipments at Maher Terminal and Long Beach Container Terminal.

SEA's position is that transportation capacity, and thus agreements with transportation companies outside of the CNTs used for SEA containers, is relevant. OOCL cannot unilaterally restrict discovery to CNTs. SEA's interrogatories and requests seek information and documents concerning OOCL's inland transportation practices and the counterparties used to perform store door service, including, as applicable, motor carriers and other inland service providers, as well as the operative agreements, communications, and related documents governing those services. SEA further maintains that this information is relevant regardless of whether a particular inland provider was customer-nominated. SEA is willing to limit the geographic focus to Maher Terminal and Long Beach Container Terminal. SEA is not willing, however, to limit the scope to CNTs only.

A Motion to Compel as to Interrogatories Nos. 8 and 19 and Requests for Production Nos. 6 and 7 appears timely in light of the disagreement over the scope of the necessary response.

3. *Incomplete Production (RFP Nos. 3, 4, 5, and 14).*

SEA advised that, based on SEA's files and the nature of the transactions at issue, SEA expected to see a meaningful volume of arrival notices, long-dwell letters, invoices, and related correspondence and communications, particularly as those items were explicitly mentioned its discovery requests. Outside a few exceptions, SEA has not found a meaningful number of documents in those categories in OOCL's production. This implicates Requests for Production Nos. 3, 4, 5, and 14.

SEA's position is that the absence of these documents makes clear that OOCL's production is incomplete. This raises serious concerns that collections were not performed, or were not effectively performed, for key custodians, repositories, documentation, or topics, and that the overall search is incomplete.

OOCL advised during the December 15 conferral that it is continuing to work on its production and expects to produce additional materials on a rolling basis, including materials responsive to Requests for Production Nos. 3, 4, 5, and 14. SEA appreciates OOCL's representation and is willing to afford OOCL the opportunity to complete its production through the close of discovery. However, SEA is compelled to reserve all rights to seek relief requiring a complete search and the necessary confirmations in the event OOCL's production is not complete by the deadline set out in the Second Amended Scheduling Order.

4. *Pricing and Shipping Act Compliance Documentation (RFP Nos. 9, 10, 11, & 12).*

SEA reiterated that documents and information reflecting OOCL's cost, profit, revenue, and pricing information related to store door moves and detention and demurrage are relevant to SEA's claims and OOCL's defenses, including when and how OOCL determined its individual detention and demurrage charges on a per-day basis align with the FMC's incentive principle and the relevant balancing that OOCL may or may not have done in connection with that determination. Whether OOCL's demurrage and detention charges operated as an incentive mechanism strikes at the heart of the issue with respect to the reasonableness of OOCL's charges.

In addition, SEA seeks documents concerning the assessment, collection, waiver, and allocation of demurrage and detention during the relevant period, in the context of port congestion and motor carrier capacity/availability. Such information bears on OOCL's practices with respect to the determination of responsibility for demurrage and detention in the context of the FMC's incentive principle, cargo fluidity, and the ability or impossibility of shippers/consignees to retrieve containers from the relevant terminals.

Further, SEA sought OOCL's basis for the manner in which it determined how best to align its store door and demurrage & detention policies with the Shipping Act as it was subsequently amended and how, if OOCL did change its policies, those changes did or did not impact the application of individual charges levied against SEA.

However, OOCL stated its position that such materials are not relevant and maintains its objections to any such production.

A Motion to Compel as to Request for Production No. 9 appears timely in light of the disagreement over relevancy, and may be necessary as to Nos. 10, 11, & 12 depending upon OOCL's forthcoming supplemental production.

5. *Privilege logs.*

The parties agreed to waive production of privilege logs.

6. *SEA's production tagging.*

SEA advised that it has technologically tagged its document productions for Sets 3 and 4 to reflect the items to which the documents are responsive. SEA further advised that its first document production set, although untagged, consists almost exclusively of SEA communications which is responsive to multiple discovery requests, including Interrogatories Nos. 12, 21-25, 27, 29 & 30 and Requests for Production Nos. 1-8, 15-17, 19, 20, and 22. SEA's second production set consisted solely of the spreadsheet of charges, which was responsive to Interrogatories Nos. 9, 25, & 28 and Requests for Production Nos. 1 & 2.

7. *SEA's Contemplated Motion to Exceed the Page Limit for Non-Dispositive Motions*

OOCL reserved its position with respect to SEA's proposal for a joint motion to exceed the non-dispositive motion page length. SEA noted that exceeding the regulatory 10 page limit appears inescapable due to the applicable requirement requiring the Parties to state each discovery request, each response, and their arguments as to why each is in fact discoverable, or not.

8. *Mediation.*

We concluded the meet-and-confer by discussing the possibility of a mediation. The parties each agreed to propose to our respective clients a one-day, in-person private mediation. We discussed a potential mediation window during the period from January through March 2026. SEA suggested the Mr. Bobby Glenn would be an acceptable mediator. OOCL agreed to review Mr. Glenn and advised that it would also explore other potential mediator candidates, including mediators located in, or willing to mediate in, Washington, DC or New York, NY.

The parties have worked cooperatively and diligently in an effort to avoid or limit motion practice and to reach agreement where possible. At this point, however, rulings on the discrete issues identified above are required as the Parties have made their positions clear, and it does not appear that further discussion on the above topics will resolve the dispute.

The Initial Order issued on July 1, 2025 requests that discovery disputes be raised promptly by motion, and SEA intends to comply to ensure, to the extent possible, completion of discovery in accordance with the Second Amended Scheduling Order issued on December 3, 2025. Nothing in this letter waives any rights, objections, or positions of SEA, all of which are expressly reserved.

Sincerely,

A handwritten signature in black ink, appearing to read 'P. Black', with a long horizontal flourish extending to the right.

Peter F. Black
MILLS BLACK LLP
Counsel to Samsung Electronics America, Inc.